

**CHAPTER cxlix.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow Corporation. A.D. 1912.
[7th August 1912.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Glasgow Corporation Order Confirmation Act 1912. Short title.

A.D. 1912.

SCHEDULE.

GLASGOW CORPORATION.

Provisional Order to authorise the Corporation of the city of Glasgow to construct new tramways to extend the limits for the supply of gas to acquire lands to amend the Glasgow Police Acts to vary the incidence of the assessment for parks and for statute labour purposes to borrow money and for other purposes.

WHEREAS the Corporation of the city of Glasgow (herein-after referred to as "the Corporation" and "the city" respectively) under and by virtue of the Glasgow Tramways Acts 1905 to 1909 have constructed and maintained tramways in and in the neighbourhood of the city and it is expedient that the Corporation should be empowered to construct and maintain the additional tramways in this Order described and to borrow money for that purpose :

And whereas it is expedient that the Corporation should be authorised to acquire additional lands and to borrow money for the purposes of the Glasgow Improvements Act 1866 and Acts amending the same :

And whereas the Corporation under and by virtue of the Glasgow Gas Act 1910 supply gas to the city and the adjoining burghs and districts :

And whereas by section 5 of the Busby and District Gas Order 1911 scheduled to and confirmed by the Gas Orders Confirmation (No. 4) Act 1911 it was enacted (inter alia) that—

"Provided that the portion of the limits of supply to the north-west of a line drawn from a point on the boundary of the parishes of Cathcart and Mearns one hundred and fifty yards or thereabouts measured in a south-easterly direction from the point at which that boundary is crossed by the road leading from Clarkston to Mearns at or near the point marked "Stone" on the six-inch Ordnance map second edition 1899 of Eastern Division (Renfrewshire) to

a point in the said road two hundred and twenty yards or thereabouts north-eastwards from its junction with the road leading to and past Crofthead and Burnhouse shall form no part of the limits of supply if the Corporation of the city of Glasgow in the session 1912 obtain authority from Parliament to supply gas within the said portion of the limits of supply and the powers of the undertakers as regards the said portion of the limits of supply shall only be operative if the Corporation fail in that session to obtain such authority” : A.D. 1912.

And whereas it is expedient that the Corporation's limits for the supply of gas should accordingly be extended :

And whereas it is expedient that the assessment under the Glasgow Parks Acts 1878 to 1909 and the statute labour assessment under the Glasgow Police Act 1866 payable by occupiers should be paid in equal parts by owners and occupiers :

And whereas it is expedient that provision should be made with reference to the election of parish councillors for the portion of the parish of Rutherglen annexed to the city by the Glasgow Corporation (Tramways Libraries &c.) Act 1899 and the portion of the parish of Paisley annexed to the city by the Glasgow Corporation Act 1909 :

And whereas it is expedient that the assessment which the Corporation are authorised to levy under the Glasgow Libraries Acts 1899 and 1909 should be increased :

And whereas it is expedient that further powers should be conferred upon the Corporation for the levying and collection of assessments :

And whereas by the deed of gift dated the 26th day of June 1906 a copy of which is set forth in the First Schedule to this Order the Right Honourable Archibald Cameron Baron Rowallan (therein named Archibald Cameron Corbett) conveyed to the Corporation the property now known as Ardgoil Estate on the terms and conditions therein specified :

And whereas the Corporation in the administration of Ardgoil Estate have expended thereon revenues of the common good and it is necessary in order to give full effect to the intentions of the donor and with a view to the proper maintenance and development of Ardgoil Estate that the Corporation

A.D. 1912. should be authorised to expend further moneys on the estate and that the expenditure already incurred in connection therewith should be confirmed:

And whereas it is expedient and would be to the public advantage that the further powers in this Order mentioned should be conferred on the Corporation in relation to that estate:

And whereas it is expedient that certain sections and portions of sections of the Acts and Orders relating to the city should be amended or repealed as by this Order provided:

And whereas it is expedient that the further powers in this Order mentioned should be conferred on the Corporation:

And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Order authorised to borrow money and such estimates are as follows:—

TRAMWAYS—

	£	s.	d.
For permanent way and electrical equipment - - -	12,138	0	0
For ground buildings &c. - -	156,591	0	0
For rolling stock - - -	27,270	0	0
	195,999	0	0

CITY IMPROVEMENTS—

For purchase of lands and buildings -	20,000	0	0
For construction of buildings and works for offices warehouses &c. - -	80,000	0	0
	100,000	0	0

MUNICIPAL BUILDINGS—

For purchase of lands and buildings -	29,600	0	0
For extension of municipal buildings -	133,000	0	0
For furnishings and equipment and for structural alterations on existing buildings - - -	37,400	0	0
	200,000	0	0

A.D. 1912.

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the tramways and other works authorised by this Order and also a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Lanark and with the town clerks of the city and of the burghs of Rutherglen and Partick and such plans sections and book of reference are herein-after respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

PART I.

PRELIMINARY.

1. This Order may be cited as the Glasgow Corporation Order 1912.

Short title
and cita-
tions.

This Order and the Glasgow Gas Act 1910 may be cited together as the Glasgow Gas Acts 1910 and 1912.

This Order and the Glasgow Improvements Acts 1866 to 1909 may be cited together as the Glasgow Improvements Acts 1866 to 1912.

This Order and the Glasgow Libraries Acts 1899 and 1909 may be cited together as the Glasgow Libraries Acts 1899 to 1912.

This Order and the Glasgow Loans Acts 1883 to 1910 may be cited together as the Glasgow Loans Acts 1883 to 1912.

This Order and the Glasgow Municipal Buildings Acts 1878 to 1909 may be cited together as the Glasgow Municipal Buildings Acts 1878 to 1912.

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— This Order and the Glasgow Parks Acts 1878 to 1909 may be cited together as the Glasgow Parks Acts 1878 to 1912.

This Order and the Glasgow Police Acts 1866 to 1909 may be cited together as the Glasgow Police Acts 1866 to 1912.

This Order and the Glasgow Tramways Acts 1905 to 1909 may be cited together as the Glasgow Tramways Acts 1905 to 1912.

This Order and the Glasgow Corporation Acts 1855 to 1910 and any other Act or Order passed during the present session of Parliament relating to the Corporation may be cited together as the Glasgow Corporation Acts 1855 to 1912.

Order
divided into
Parts.

2. This Order is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Improvements.

Part IV.—Gas.

Part V.—Parks.

Part VI.—Police.

Part VII.—Miscellaneous.

Interpreta-
tion.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and in those Acts where applied to this Order the expression “the promoters of the undertaking” means the Corporation.

Further in-
terpretation.

4. The following words and expressions in this Order have the meanings hereby assigned to them (that is to say):—

“Act” includes a local and personal Act and a private Act and any Order confirmed by an Act of Parliament;

“Act of 1866” means the Glasgow Police Act 1866;

“Act of 1878” means the Glasgow Public Parks Act 1878;

“Act of 1892” means the Glasgow Corporation Act 1892;

“Act of 1896” means the Glasgow Corporation (General Powers) Act 1896;

“Act of 1899” means the Glasgow Corporation (Tramways Libraries &c.) Act 1899;

“Act of 1907” means the Glasgow Corporation Act 1907; A.D. 1912.

“Act of 1909” means the Glasgow Corporation Act 1909;

“Act of 1910” means the Glasgow Gas Act 1910;

“Ardgoil estate” means the estate conveyed to the Corporation by the deed of gift set forth in the First Schedule to this Order;

“City” means the city and royal burgh of Glasgow;

“Common good” means the common good fund of the city;

“Corporation” means the corporation of the city;

“Improvements Acts” means the Glasgow Improvements Act 1866 and Acts amending the same;

“Intended tramways” means the tramways by this Order authorised;

“Loans Acts” means the Glasgow Loans Acts 1883 to 1910;

“Loans fund” means the fund provided by the Loans Acts;

“Magistrates’ committee” means the statutory committee appointed in pursuance of the Act of 1866;

“Order of 1905” means the Glasgow Corporation (Tramways Consolidation) Order 1905;

“Parks Acts” means the Glasgow Parks Acts 1878 to 1909;

“Sheriff” means the sheriff of the county of Lanark;

“Town clerk” means the town clerk of the city;

“Tramways Acts” means the Glasgow Tramways Acts 1905 to 1909.

5. The Lands Clauses Acts so far as they are applicable to the purposes of and are not inconsistent with this Order are hereby (except where expressly varied by this Order) incorporated with this Order and this Order shall be deemed to be a special Act within the meaning of those Acts. Incorporation of Acts.

PART II.

TRAMWAYS.

6. Subject to the provisions of this Order the Corporation may make form lay down renew work use and maintain the tramways herein-after in this section described in the lines and according to the levels shown on the deposited plans and sections with all necessary and proper rails chairs plates sleepers New tramways.

A.D. 1912. channels wires poles posts conduits section boxes tubes ropes
— engines engine-houses subways manholes shafts junctions cross-
overs passing places points turntables turnouts weighbridges
stables carriage-houses offices carriages sheds buildings ware-
houses works and conveniences connected therewith or for the
purposes thereof :

Provided that nothing in this section shall authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways herein-before in this section referred to and by this Part of this Order authorised are—

- (1) Tramway No. 7.—2 furlongs 5·60 chains or thereabouts in length situate wholly in the city the parish of Cathcart and county of Lanark commencing by a junction with the existing tramways in Grange Road at a point 30 yards or thereabouts northwards from the junction of Battlefield Road with Grange Road thence turning into and passing along Battlefield Road and Sinclair Drive and terminating in Sinclair Drive at a point 11 yards or thereabouts northwards from the centre of Cartside Street :
- (2) Tramway No. 8.—6·82 chains or thereabouts in length situate wholly in the city the parish of Govan and county of Lanark commencing by a junction with the existing tramways in Eglinton Street at a point 10 yards or thereabouts southwards from the junction of Elgin Street with Eglinton Street thence turning into and passing along Elgin Street into and terminating in Pollokshaws Road by a junction with the existing tramways in that road at a point 13 yards or thereabouts north-eastwards from the junction of Elgin Street with Pollokshaws Road :
- (3) Tramway No. 9.—4·80 chains or thereabouts in length situate wholly in the city the parish of Glasgow and county of Lanark commencing by a junction with the existing tramways in Argyle Street at a point 16 yards or thereabouts eastwards from the junction of Kelvin-grove Street with Argyle Street thence turning into

and passing along Kelvingrove Street and terminating by a junction with the existing tramways in Sauchiehall Street at a point 18 yards or thereabouts eastwards from the junction of Kelvingrove Street with Sauchiehall Street: A.D. 1912.

- (4) Tramway No. 10.—3·27 chains or thereabouts in length situate wholly in the city the parish of Govan and county of Lanark commencing by a junction with the existing tramways in Great Western Road at a point 29 yards or thereabouts eastwards from the junction of Kirklee Road with Great Western Road thence turning into and passing along Kirklee Road and terminating in that road at a point 64 yards or thereabouts northwards from the junction of Great Western Road with Kirklee Road:
- (5) Tramway No. 11.—2·63 chains or thereabouts in length commencing by a junction with the existing tramways in Gairbraid Street at a point 13 yards or thereabouts south-eastwards from the junction of Kelvinside Avenue with Gairbraid Street thence turning into and passing along Kelvinside Avenue and terminating in that avenue at a point 47 yards or thereabouts south-westwards from the junction of Gairbraid Street with Kelvinside Avenue:
- (6) Tramway No. 12.—3·42 chains or thereabouts in length commencing by a junction with the existing tramways in Cumbernauld Road at a point 17 yards westwards from the junction of Aitken Street with Cumbernauld Road thence turning into and passing along Aitken Street and terminating in that street at a point 65 yards or thereabouts southwards from the junction of Cumbernauld Road with Aitken Street:
- (7) Tramway No. 13.—2·32 chains or thereabouts in length commencing by a junction with the existing tramways in Duke Street at a point 20 yards or thereabouts eastwards from the junction of Fleming Street with Duke Street thence turning into and passing along Fleming Street and terminating in Fleming Street at a point 38 yards or thereabouts southwards from the junction of Duke Street with Fleming Street:

A.D. 1912.
—

- (8) Tramway No. 14.—1·26 chains or thereabouts in length commencing by a junction with the existing tramways in Duke Street at a point 17 yards or thereabouts westwards from the junction of Fleming Street with Duke Street thence turning into Fleming Street and terminating by a junction with the proposed Tramway No. 13 above described in Fleming Street at a point 18 yards or thereabouts southwards from the junction of Duke Street with Fleming Street:
- (9) Tramway No. 15.—4·24 chains or thereabouts in length commencing by a junction with the existing tramways in Dumbarton Road at a point 17 yards or thereabouts south-eastwards from the junction of Well Street with Dumbarton Road thence turning into and passing along Well Street and terminating in New Bridge Street at or near the north-west building line of that street:
- (10) Tramway No. 16.—1·38 chains or thereabouts in length commencing by a junction with the existing tramways in Dumbarton Road at a point 25 yards or thereabouts north-westwards from the junction of Well Street with Dumbarton Road thence turning into Well Street and terminating in Well Street by a junction with the proposed Tramway No. 15 above described at a point 26 yards or thereabouts south-westwards from the junction of Dumbarton Road with Well Street:
- (11) Tramway No. 17.—3·27 chains or thereabouts in length situate wholly in the burgh of Rutherglen the parish of Rutherglen and county of Lanark commencing by a junction with the existing tramways in Farmeloan Road at a point 13 yards or thereabouts southwards from the junction of East King Street with Farmeloan Road thence turning into and passing along East King Street and terminating in that street at a point 63 yards or thereabouts eastwards from the junction of Farmeloan Road with East King Street.

The intended tramways which shall be laid as double lines except Tramways Nos. 13 14 15 16 and 17 which will be wholly single lines will be situate in the parishes of Glasgow Govan Cathcart and Rutherglen the city the burghs of Rutherglen and Partick and in the county of Lanark.

7. The intended tramways shall be completed within five years from the passing of the Act confirming this Order and on the expiration of that period the powers granted to the Corporation for the construction of such tramways or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

A.D. 1912.

Period for
completion
of tramways.

8.—(1) The Corporation may borrow for the purposes of the powers conferred upon them by the Tramways Acts and by this Part of this Order and in the manner authorised by and subject to the provisions with respect to the borrowing of money and the repayment thereof by means of a sinking fund of the Order of 1905 any sum of money not exceeding one hundred and ninety-one thousand four hundred and ninety-eight pounds in addition to the sum of three million four hundred and fifty-one thousand four hundred and eighty-seven pounds authorised to be borrowed by the Tramways Acts and if after having borrowed the said sum or any part thereof the Corporation pay off the same by other means than by sinking fund they may reborrow the same.

Borrowing
powers for
tramways.

(2) The amount borrowed by the Corporation for the purposes of the tramway undertaking whether in exercise of their powers under the Tramways Acts and this Order or at common law shall not exceed in amount the total sum they are authorised to borrow by the Tramways Acts and this Part of this Order.

9. The intended tramways shall form one undertaking with the tramways authorised to be constructed under the Tramways Acts and the provisions contained in the Order of 1905 and section 9 (Use of posts standards &c. by Postmaster-General) of the Act of 1907 shall extend and apply to the intended tramways in the same manner and to the like effect as if they were part of "the tramways" "the intended tramways" and "the tramway undertaking" as defined by section 2 (Interpretation) of the Order of 1905.

Application
of Order of
1905 and
Act of 1907.

10. Section 31 (Additional crossings &c.) of the Order of 1905 shall be read and have effect as if the words "of the Board of Trade and" were inserted after the word "consent" in that section.

Amendment
of section 31
of Order of
1905.

A.D. 1912.

Erection of
posts on
carriageway.

11. In the construction of the tramways by this Order authorised no post or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

PART III.

IMPROVEMENTS.

Lands for
improve-
ments.

12. Subject to the provisions of this Order the Corporation may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the Improvements Acts and this Part of this Order (that is to say):—

That plot or area of ground wholly situate in the city in the parish of Glasgow and county of Lanark extending to 656 square yards or thereby with the houses and buildings thereon the boundary of which plot or area of ground is as follows viz.:—

On the east High Street along which it extends in the first place 77 feet 6 inches or thereby in the second place 9 inches or thereby in the third place 7 feet 2 inches or thereby in the fourth place 12 feet 1 inch or thereby in the fifth place 15 feet 3 inches or thereby in the sixth place 12 feet 1 inch or thereby and in the seventh place 7 feet 4 inches or thereby on the south the north building line of Trongate along which it extends 59 feet 4 inches or thereby on the west north and again on the south the property of the Corporation along which it extends on the west in the first place 50 feet 9 inches or thereby in the second place 15 feet 2 inches or thereby in the third place 12 feet 4 inches or thereby in the fourth place 12 feet 6 inches or thereby in the fifth place 6 feet 3 inches or thereby in the sixth place 3 feet 8 inches or thereby and in the seventh place 4 feet 4 inches or thereby on the north in the first place 39 feet 1 inch or thereby in the second place 3 feet 10 inches or thereby in the third place 14 feet 10 inches or thereby and in the fourth place 36 feet 6 inches or thereby and on the south in the first place 17 feet 2 inches or thereby in the second place 2 feet 6 inches or thereby and in the third place 11 inches or thereby.

13. The provisions of the Improvements Acts shall extend and apply to the lands to be acquired under and by virtue of this Part of this Order to the same extent and effect as if the acquisition of those lands had been authorised by those Acts.

A.D. 1912.
Application
of Improve-
ments Acts.

14. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Part of this Order shall cease after the expiration of five years from the passing of the Act confirming this Order.

Period for
compulsory
purchase.

15. The Corporation may for carrying into effect any of the purposes of the Improvements Acts with reference to lands acquired under those Acts and for the purposes of this Part of this Order borrow in the manner authorised by the Loans Acts such further moneys as they think proper not exceeding in the whole the sum of one hundred thousand pounds in addition to the sum of one million six hundred and three thousand two hundred and forty-five pounds eighteen shillings authorised by the Improvements Acts and they may again borrow any part of the said sum of one hundred thousand pounds which may have been repaid by them otherwise than by the application of moneys received for lands and properties sold by them.

Borrowing
for improve-
ments.

16. The Corporation shall from and after the first day of June one thousand nine hundred and thirteen annually set apart as a sinking fund such sum as will secure that the amount from time to time borrowed by them under this Part of this Order and not paid off by other means than by sinking fund shall be repaid within a period not exceeding sixty years and they shall from time to time apply such sinking fund in paying off the principal sum so borrowed.

Sinking
fund.

PART IV.

GAS.

17.--(1) The limits of the Corporation for the supply of gas as defined in the Act of 1910 (in this section referred to as "the limits of supply") are hereby extended so as to include that portion of the parish of Mearns herein-after described so far as not already within those limits (that is to say) That portion of the parish of Mearns lying to the north-west of a

Extending
limits for
supply of
gas.

A.D. 1912. line drawn in a south-westerly direction from a point on the boundary of the parishes of Cathcart and Mearns one hundred and forty-three yards south-east of the road from Clarkston to Mearns through a point on the same road seventy-seven yards north-east by north of the farmhouse known as "Gateside" and to the north-east of a line drawn from a point on the above-mentioned line one hundred and fifty yards or thereabouts south-west of its intersection by the Broom Burn to the point where the centre line of the road from Newton Mearns viâ Capelrig Bridge to Glasgow intersects the boundary between the parishes of Eastwood and Mearns.

(2) The area added to the limits of supply by this section shall form part of the supplementary supply district defined in the Act of 1910.

(3) The Act of 1910 shall extend and apply to the area in this section described and added to the limits of supply in the same manner and to the like effect as if it were part of the supplementary supply district defined by the Act of 1910.

(4) So much of the Busby and District Gas Order 1911 as relates to the area added to the limits of supply by this section is hereby repealed.

PART V.

PARKS.

Confirmation
of purchase
of lands of
Stanalane.

18. The sale by the Royal Incorporation of Hutchesons' Hospital to and the purchase by the Corporation acting in execution of the Parks Acts of the lands and property of the said incorporation known as Stanalane in the parish of Eastwood and county of Renfrew extending to twelve and one-third acres or thereabouts as described in the disposition by the said incorporation to the Corporation dated the first day of June one thousand nine hundred and ten and recorded in the division of the General Register of Sasines applicable to the county of Renfrew and also as in the books of the Lords of Council and Session on the seventh day of June one thousand nine hundred and ten is hereby confirmed.

Increase of
amount for
music in
parks.

19. Section 14 (Corporation may provide music in parks &c.) of the Act of 1896 shall be read and construed as if the sum thereby authorised to be expended annually were four thousand pounds in lieu of two thousand five hundred pounds.

20. The following provisions of the Parks Acts are hereby repealed as from and after the term of Whitsunday nineteen hundred and nineteen (that is to say):—

A.D. 1912.

Repeal of
assessment
provisions
in Parks
Acts.

(1) Section 25 (Power to levy assessments) and section 26 (Assessments to be recovered in same manner as police assessments) of the Act of 1878;

(2) Section 11 (1) (Amendment of section 25 of Act of 1878) of the Act of 1892;

(3) Section 16 (Amendment of section 11 of the Glasgow Corporation Act 1892 respecting assessments) of the Act of 1896;

(4) Section 52 (Amendment of section 16 of Act of 1896 as to parks assessment) of the Act of 1899;

and in lieu thereof the provisions contained in the immediately following section of this Part of this Order shall apply and have effect. Provided that from and after the passing of the Act confirming this Order until the term of Whitsunday nineteen hundred and nineteen section twenty-five of the Act of 1878 shall be read and construed as if the words "upon or in respect of any heritages of less rental or annual value than four pounds nor" were omitted therefrom.

21.—(1) For defraying the expense attending the execution of the Parks Acts and of this Part of this Order and carrying the purposes thereof into effect the Corporation for the year from the term of Whitsunday nineteen hundred and nineteen to the term of Whitsunday nineteen hundred and twenty and for every year thereafter may (subject to the provisions of subsections (1) (2) (3) and (4) of section 36 (Annual value of lands and heritages used for agricultural and other purposes) of the City of Glasgow Act 1891) assess and levy upon and from the owners and occupiers of all lands and heritages situated within the city (except as herein-after provided) in the proportion of one-half thereof upon and from the owner and the remaining one-half upon and from the occupier of such lands and heritages an annual assessment not exceeding fourpence halfpenny per pound on the rental or annual value of such lands and heritages as appearing in the valuation roll. Provided always that such assessment shall not be assessed and levied upon or in respect of any lands and heritages which are wholly exempted from payment of police assessment in the city.

Assessment
under Parks
Acts.

A.D. 1912.
Collection of
assessment.

(2) Such assessment shall be collected by the collector appointed by the Corporation and shall be recoverable by the like summary process and subject to the same mode of appeal as the police assessments of the city are for the time being by law recoverable or subject to and such collector shall pay the amount of the same when collected to the Corporation.

PART VI.

POLICE.

Incorporation of sections of Act of 1866.

22. Sections 83 85 88 (except so much thereof as is repealed by the Summary Jurisdiction (Scotland) Act 1908) 98 99 (as amended by section 43 of the Act of 1907) 101 to 106 108 111 115 123 124 125 129 134 and 405 to 413 of the Act of 1866 and article 13 of the General Police and Improvement (Scotland) Act 1862 Order Confirmation (Glasgow) Act 1877 are incorporated with and shall form part of this Part of this Order and the expression "police offence" where it occurs in the sections so incorporated shall include any offence punishable under this Part of this Order and the word "proprietor" shall have the meaning assigned to it in section 4 of the Act of 1866.

Amendment of Act of 1866 as to carpet beating &c.

23. Section 149 (defining certain offences in streets and public places and their punishment) of the Act of 1866 is hereby amended as follows (that is to say):—

Subsection (40) shall be read and construed as if the words "Every person who beats or shakes any carpet rug or mat except between the hours of eight in the morning and twelve noon" were substituted for the words contained in that subsection:

Subsection (45) shall be read and construed as if the words "any of the lieges after having been requested by a constable to cease" were substituted for the words "the proprietor or occupier of any building or part of a building after having been requested by him personally or through his servant or a constable to cease."

Throwing glass &c. on streets.

24. Every person who throws down or places and leaves upon any street within the city any glass earthenware metal or

any material having sharp edges or points shall be liable to a penalty not exceeding forty shillings. A.D. 1912.

25.—(1) It shall not be lawful for any person in any street within the city except with the consent in writing of the magistrates' committee— Restriction
on adver-
tising
vehicles &c.

(A) to use or cause to be used any vehicle whatever be its form or construction for the purpose exclusively or principally of displaying advertisements; or

(B) to carry or cause to be carried by any person for advertising purposes any board placard picture print or notice exceeding four feet by two feet six inches or to carry or cause so to be carried any other advertisement exceeding those dimensions.

(2) Any person making application for such consent and being aggrieved by the refusal thereof may within one month of such refusal appeal to the sheriff who may if he considers that such consent has been unreasonably refused grant the same.

(3) The Corporation may make byelaws for the regulation control and use of any vehicle board placard picture print notice or advertisement referred to in subsection (1) of this section.

(4) Every person who acts in contravention of the provisions of this section or of any byelaws made thereunder shall be liable to a penalty not exceeding forty shillings.

(5) Subsection (4) of section 119 (Licences for advertising sites) of the Glasgow Building Regulations Act 1900 is hereby repealed.

26. The Corporation may for the purpose of defraying their expenses other than maintenance under section 29 (Local authority may erect public waterclosets &c.) of the Public Health (Scotland) Act 1897 borrow in the manner authorised by the Loans Acts such sums of money as they may deem necessary and the money so borrowed shall form a charge against the public health general assessment authorised by the said Act of 1897 Provided that the Corporation shall annually set apart and pay into the loans fund as a sinking fund on the money so borrowed such sum as will secure that the amount borrowed shall be repaid within a period not exceeding thirty years from

Borrowing
for public
water-
closets &c.

A.D. 1912.

the date of such borrowing The Corporation shall from time to time apply such sinking fund in paying off the money so borrowed.

Statute
labour
assessment.

27. The statute labour assessment which the Corporation are authorised to impose and levy under and in terms of section 39 (Power to make ordinary assessments for the purposes of Act) of the Act of 1866 shall for the year from the term of Whitsunday nineteen hundred and nineteen to the term of Whitsunday nineteen hundred and twenty and for every year thereafter be imposed and levied upon and from the owners and occupiers of all lands and heritages situated within the city in the proportion of one-half thereof upon and from the owner and the remaining one-half upon and from the occupier of such lands and heritages in the manner provided by the Act of 1866 and Acts amending the same as amended and varied by this section and may be collected and recovered in the same way as assessments under those Acts.

Byelaws
for certain
purposes.

28.—(1) The Corporation may make byelaws and issue notices and orders—

(A) Regulating the traffic or any particular traffic in streets within the city:

(B) Diverting temporarily out of any street or streets traffic of every kind or such particular kinds of traffic as may be specified in any such notice or order.

(2) The following provisions shall apply to any such byelaws (that is to say):—

(A) The Corporation shall advertise any proposed byelaws once in each of four successive weeks in two or more daily newspapers published or circulating in the city the last advertisement being published not less than one month before such byelaws are lodged with the sheriff as herein-after in this section provided:

(B) Any person interested may within one month from the date of the said last advertisement make representations to the Corporation against any proposed byelaws and within the same period lodge with the town clerk objections to such byelaws:

(c) The Corporation shall after the expiry of one month from the date of the said last advertisement lodge with the sheriff a copy of such byelaws and of such objections thereto if any which may have been lodged and not withdrawn and the sheriff shall give any person who shall have lodged such objections an opportunity of being heard thereon for his interest but not so as to allow more than one person to be heard upon the same matter of objection and thereafter the sheriff may approve disallow or alter such byelaws: A.D. 1912.

(d) The byelaws as approved of by the sheriff shall be submitted by the Corporation to the Secretary for Scotland for confirmation who after such inquiry as he may think fit may confirm the same with or without modification or may disallow the same:

(e) Such byelaws shall only take effect after they have been confirmed by the Secretary for Scotland and shall come into force on a date to be fixed by him:

(f) The Corporation shall in two or more newspapers published or circulating in the city publish in full such byelaws when so approved and confirmed and shall also supply gratis to every person applying for the same a copy of any proposed byelaws or of any byelaws so approved and confirmed.

(3) Any such byelaws so approved and confirmed or any notices or orders may be proved by the production of a copy thereof purporting to be certified as a true copy by the town clerk and any such byelaws notices or orders so proved shall be taken to have been duly made and approved of by the sheriff and the Secretary for Scotland or by the Corporation as the case may be unless and until the contrary is proved. Proof of byelaws.

(4) Such byelaws notices or orders may impose such fines not exceeding forty shillings for each offence committed against any of such byelaws notices or orders. Provided that such byelaws notices or orders shall be so framed as to allow the court in which any fine imposed thereby is sought to be recovered to order the whole or part only of such fine to be paid or to remit the whole fine. Fines may be imposed.

(5) Due notice shall be given by advertisement in at least two daily newspapers circulating in the city of any notices or

A.D. 1912. orders issued under the provisions of this section and the same shall otherwise be duly published.

PART VII.

MISCELLANEOUS.

Servitudes
&c. by
agreement.

29. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such land and the provisions of the said Acts with respect to lands and rentcharges or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Correction of
errors &c. in
deposited
plans and
book of
reference.

30. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or described in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers affected by such proposed correction may apply to the sheriff for the correction thereof and if it appear to the sheriff that such omission misstatement or wrong description arose from accident or mistake he shall certify the same accordingly and shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county of Lanark and a duplicate thereof with the town clerk of the city or burgh in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Corporation may take the lands and execute the works in accordance with such certificate.

Compensa-
tion to be
settled by
single
arbitrator.

31.--(1) All cases of disputed compensation under this Order whereby the Corporation are entitled to acquire land compulsorily under the Lands Clauses Acts or of disputed compensation falling to be determined under the provisions of

A.D. 1912.

the Lands Clauses Acts shall notwithstanding anything in those Acts contained be determined by a single arbiter to be appointed by the parties or in case both parties do not concur in the appointment of a single arbiter it shall be in the power of either party to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversmen sheriff or jury acting under the last-mentioned Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly Provided that the arbiter shall notwithstanding anything in those Acts contained determine the amount of expenses in the arbitration and such determination shall be final The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland The expression "land" in this section includes water and any right or servitude to or over land or water.

(2) The arbiter shall if any question of law arises in the course of an arbitration under this section have power at the request of either party to state a case for the opinion of the Court of Session and the said Court shall determine such question.

32. Wherever under any Act the Corporation are authorised to levy collect or recover any assessment rate or charge such assessment rate or charge may if the Corporation so direct and notwithstanding anything to the contrary in any Act contained be levied collected and recovered in the following manner (that is to say):—

Assessments
by instal-
ments.

(1) The Corporation may levy collect or recover all or any of the said assessments rates or charges by instalments not being more than four of such amounts and to be paid on such dates as they shall fix and determine at the time of fixing or imposing such assessments rates or charges and the demand note shall in addition to the other required particulars state the time appointed for the payment of each instalment:

(2) All powers rights and remedies of the Corporation and their officers for levying collecting or recovering assessments rates and charges shall extend and apply

A.D. 1912.

to each instalment as if the same were a separate assessment rate or charge :

- (3) If at the time of the issue of a notice or demand note for any assessment rate or charge or any instalment thereof the valuation roll for the city has not been completed such assessment rate or charge or instalment thereof shall be levied collected or recovered on the amount of the yearly rent or value appearing in the last completed valuation roll for the city.

Borrowing
powers for
Municipal
Buildings.

33. Section 17 (Extension of borrowing powers for purposes of Municipal Buildings Act) of the Glasgow Corporation (Gas &c.) Order 1902 authorising the Corporation to borrow further money for the purposes of the Glasgow Municipal Buildings Act 1878 shall be read and have effect as if the sum of eight hundred and sixty thousand pounds were therein specified instead of the sum of six hundred and sixty thousand pounds.

Amendment
of Valuation
of Lands
(Scotland)
Act 1854.

34. Section 5 (Notice to be given to persons whose property is valued) of the Valuation of Lands (Scotland) Act 1854 shall in its application to the city be read and construed as if the word "June" were therein mentioned instead of "July" occurring therein.

Libraries
assessment.

35. Section 39 (New assessment) of the Act of 1899 shall be read and construed as if the assessment thereby authorised were one penny halfpenny per pound in lieu of one penny per pound.

Evidence of
resolutions
&c.

36. A copy of or an extract from a minute of a meeting of the Corporation or of a committee appointed by the Corporation or a copy of any order rule or regulation made by the Corporation or of any such committee certified as correct by the town clerk shall be sufficient evidence of such minute rule or regulation and of the terms thereof respectively and shall be received as evidence in all courts whatsoever.

Elections in
parishes.

37. Subject to the proviso herein-after in this section contained section 12 (Application of Local Government (Scotland) Act 1894 to parishes in Glasgow) of the Act of 1896 shall apply to the portions of the parishes of Rutherglen and Paisley respectively annexed to the city by the Act of 1899 and the Act of 1909 as if those parishes had been included in the said section 12 of the Act of 1896. Provided that the election of

parish councillors for the said portion of the parish of Rutherglen. A.D. 1912.
shall be conducted on the same day and in the same manner as
the election of town councillors for the burgh of Rutherglen
and as if the said portion of the parish of Rutherglen were
situated in that burgh and the election of parish councillors for
the said portion of the parish of Paisley shall be conducted on
the same day and in the same manner as the parish council
elections for the parish of Paisley and as if the said portion
were still part of the landward part of the parish of Paisley.

38. The Corporation may aggregate the quotas of expenditure Lunacy
in respect of the portions of the several lunacy districts within assessment.
the city apportioned on the city under the Lunacy (Scotland)
Act 1857 and Acts amending the same and may raise the sum
required to pay such aggregate expenditure and also the expense
of assessment collection and remittance and any arrears where
such shall occur of preceding years by an assessment to be
imposed on all lands and heritages situated within the city and
to be levied and collected from all persons liable for the same
under the provisions of the said last-mentioned Acts as if the
city were wholly within one lunacy district.

39. The advance of moneys made by the Corporation out of Moneys
the common good in connexion with the administration of Ardgoil advanced on
Estate amounting to thirteen thousand one hundred and thirty- Ardgoil
nine pounds fourteen shillings and threepence or thereby is Estate.
hereby sanctioned and confirmed and the said advances and any
other moneys so advanced and all interest accruing thereon shall
be paid off out of the revenues or other moneys to be derived
from that estate.

40. Notwithstanding the terms and conditions of the said Additional
deed of gift the Corporation may— powers in
respect of
Ardgoil
Estate.

- (1) Appropriate and set apart portions of Ardgoil Estate
for the purposes of afforestation and carry out thereon
afforestation schemes:
- (2) Generally do all things necessary for the utilisation and
development of Ardgoil Estate:
- (3) Make advances out of the common good for the purposes
of the deed of gift and of this section or borrow
on the security of Ardgoil Estate or of the common
good for expenditure connected with such purposes:

A.D. 1912.
—

(4) Lease or feu in consideration of a yearly rent feu duty ground annual or other annual payment such portions of Ardgoil Estate and buildings thereon as they shall consider not to be required for the purposes of the said deed of gift and under such conditions (not being conditions inconsistent with the deed of gift) as they may think expedient and also sell or dispose of the feu duties or ground annuals derivable therefrom provided that such feu duties or ground annuals and the prices to be obtained on the sale of such feu duties or ground annuals shall be applied in paying off the moneys expended out of the common good on Ardgoil Estate.

Fees of clerk
of peace of
county of
city.

41. The Corporation may pay out of such funds or assessments as they shall fix and determine the fees and outlays heretofore paid or hereafter paid or payable to the clerk of the peace of the county of the city of Glasgow other than fees and outlays payable to him by the Corporation under and by virtue of the Licensing (Scotland) Act 1903.

Repeal of
provisions of
existing
Acts.

42. From and after the passing of the Act confirming this Order the provisions of the Acts specified in the Second Schedule to this Order are hereby repealed to the extent mentioned in the third column of that schedule.

Expenses of
Order.

43. The costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation and if paid out of borrowed moneys shall be repaid out of revenue within five years from the passing of the Act confirming this Order.

THE FIRST SCHEDULE.

A.D. 1912.

(Referred to in the Preamble and in the Section of this Order of which the marginal note is "Further interpretation.")

I Archibald Cameron Corbett Member of Parliament for the Tradeston Division of the city of Glasgow and residing at Thornliebank House Thornliebank near Glasgow heritable proprietor of the lands and others hereinafter disposed considering that I have arranged to present the lands and others hereinafter disposed as a gift to the city of Glasgow for the use of the inhabitants of the said city therefore in implement of my purpose I do hereby give grant and dispoise to and in favour of the Corporation of the city of Glasgow and their successors whomsoever heritably and irredeemably all and whole that portion of the lands and estate of Ardkinglas and others in the county of Argyll known as the Loch Goil and Loch Long Section which lies to the south or south-east of and is separated from the remainder of the said lands and estate by an imaginary line of boundary as follows Beginning on the north-east at a point immediately to the north of Beinn Ime the said line runs in a westerly direction along the centre of the course of a small burn known as Allt Beinn Ime to the point where the burn joins the Water Kinglas eastwards of Butterbridge thence along the centre of the Water Kinglas to the bridge known as Butterbridge crossing the said Water Kinglas thence along the public road (which leads from Cairndow to Arrochar) from the point where the road crosses the Kinglas at that bridge southward to the point where said road is joined by the road leading to Lochgoilhead thence south and south-west along the latter road to the point where it crosses the burn in Glenmore and from that point the said line runs southwards along the centre of that burn to the point where that burn is joined by the burn which runs through Glenbeg (and which two last-mentioned burns after their confluence are known by the name of the River Goil) and from the said last-mentioned point the said line again runs southwards along the centre of the present or former course of the said River Goil to the point where it ceases to be the march with the farm of Ardno on the remainder (not hereby disposed) of the said lands and estate thence crossing Donich Water at its junction with the River Goil and passing eastward along the southern side of Donich Water to the north-western corner of the ground feued to Samuel Woolfield marked 1 (one) on plan prepared by William Robertson Copland

Stamp.

Ten
Shillings.

A.D. 1912. civil engineer Glasgow and signed by me as relative hereto thence north-eastward south-eastward south-westward and north-westward round the boundaries of said feu to the north-western corner thereof thence in a westerly direction along the southern side of Donich Water to the point where said stream unites with the River Goil thence southward and westward along the boundary of the glebe lands to the public road from Lochgoilhead to Cairndow thence crossing the public road and taking in the farm steading of Lochgoilhead which is bounded on the north partly by the smithy presently occupied by John Munro marked K on said plan and partly by the burial ground attached to the parish church on the western side by the manse ground on the south partly by the northern shore of Loch Goil and partly by the cottage known as Lochview with ground attached occupied by Miss McKellar and marked G on said plan and on the east partly by said cottage and ground attached and partly by the said public road from Lochgoilhead to Cairndow thence recrossing said road and running in a straight line eastward and southward along the northern and eastern boundaries of the ground feued to Alexander Macfarlane marked 2 (two) on the said plan to the boundary of the ground feued to John McKellar thence eastward along the northern boundary of the ground feued to John McKellar marked 39 (thirty-nine) on plan thence northward along the western side of the road leading past the public hall and eastward and southward along the northern and eastern boundaries of the ground feued to the public hall trustees marked 4 (four) on said plan and southward along the eastern boundary of the ground feued to the Lochgoilhead and Kilmorich School Board marked 5 (five) on said plan thence eastward along the southern side of an occupation road to the north-eastern corner of the ground feued to Archibald McVicar marked 7 (seven) on said plan thence in a southerly direction along the eastern and southern boundaries of said ground to the eastern boundary of the ground leased by the parochial board of the parish of Lochgoilhead and Kilmorich marked F on said plan thence southward along the eastern boundary of the ground leased by the parochial board and along the eastern boundaries of the plots of ground feued to Hugh McGlashan marked 8 (eight) on said plan to Donald McKellar marked 9 (nine) on said plan to Hugh McIntosh marked 10 (ten) on said plan to Frederick Small marked 11 and 12 (eleven and twelve) on said plan to William Kirkwood marked 13 (thirteen) on said plan to George Jenkins marked 14 (fourteen) on said plan to Donald Fraser marked 15 (fifteen) on said plan and to James Campbell marked 16 (sixteen) on said plan thence first eastward second southward and third westward along the boundaries of the ground feued to John and James Allison marked 17 (seventeen) on said plan thence southward along the road to Lochgoilhead to the northern boundary

of the plot of ground extending to thirty square yards or thereby leased to Hector Blair Fisherman marked C on said plan thence eastward southward and westward along the northern eastern and southern boundaries of said plot of ground to the road to Lochgoilhead thence southward along the eastern side of said road to the northern boundary of the ground feued to Robert Gibb marked 21 (twenty-one) on said plan thence first eastward and thence southward along the northern and eastern boundaries of said feu thence in a southerly direction along the eastern boundaries of the ground feued to Alexander Paterson marked 23 (twenty-three) on said plan and to Thomas Leck marked 25 (twenty-five) on said plan and in a southerly and westerly direction along the eastern and southern boundaries of the ground feued to George Jenkins marked 26 (twenty-six) on said plan thence southward along the road leading to Lochgoilhead to the northern boundary of the ground feued to J. M. Taylor marked 31 (thirty-one) on said plan thence first eastward and then southward along the northern and eastern boundaries of said feu and in a southerly direction along the eastern boundaries of the ground feued to William Hutchison marked 32 (thirty-two) on said plan and of the ground feued to Mrs. Mary Menzies or Hutchison and Robert Hutchison marked 33 (thirty-three) on said plan and in a southerly and westerly direction along the eastern and southern boundaries of the ground feued to James Adam marked 33A (thirty-three A) on said plan thence southward along the road leading to Lochgoilhead and in a westerly direction along the southern boundary of the ground feued to David Law and James Selkirk marked 35 (thirty-five) on said plan to Loch Goil thence in a southerly direction along the eastern shore of Loch Goil to the northern boundary of the ground with the cottage thereon called Rock Cottage let to David McLauchlan marked B on said plan thence eastward and southward along the northern and eastern boundaries of said ground and southward and westward along the eastern and southern boundaries of the ground let for a joiner's shop and occupied by James Blair marked A on plan to Loch Goil thence in a southerly direction along the eastern shore of Loch Goil to the boundary of the ground leased to Mrs. Elizabeth De Caynoth Ballardie or Hutchison marked E on said plan thence first in an easterly and then in a southerly direction along the northern and eastern boundaries of said ground and first in a southerly and then in a westerly direction along the eastern and southern boundaries of the ground feued to John Ballardie marked 36 (thirty-six) on said plan thence in a southerly direction along the eastern shore of Loch Goil to the boundary of the ground feued to James Walker marked 37 (thirty-seven) on said plan thence first in an easterly second in a southerly and third

A.D. 1912.

A.D. 1912. in a westerly direction along the northern eastern and southern boundaries of said feu thence in a southerly direction along the eastern shore of Loch Goil to the boundary of the ground feued to William Fleming marked 38 (thirty-eight) on said plan thence first in an easterly second in a southerly and third in a westerly direction round the boundaries of said feu thence first in a southerly and then in an easterly direction along the eastern and northern shores of Loch Goil to the boundary of the ground at Corran feued to Samuel Woolfield marked 40 (forty) on said plan thence first northward second eastward and third southward along the boundaries of said feu thence first in an easterly and then in a south-easterly direction along the northern and north-eastern shores of Loch Goil and in a north-easterly direction along the north-western shore of Loch Long to the north-eastern corner of Coilessan Farm thence in a westerly direction along the northern boundary of Coilessan Farm to the summit of the hill marked "The Brack" on said plan thence in a north-westerly direction along the north-eastern boundary of Lochgoilhead Farm to the point near the upper end of the stream marked "Coire Odhar" on said plan where the boundaries of Lochgoilhead Farm and Pole Farm meet thence first in a westerly second in a northerly and third in a north-easterly direction along the boundaries of Pole Farm on the line indicated on said plan to the summit of Beinn Imé and thence in a northerly direction to the point of commencement first described said portions of the lands and estate of Ardkinglas being situated within the parish of Lochgoilhead and Kilmorich and county of Argyll and containing within the boundaries above described and indicated on said plan fourteen thousand seven hundred and forty acres or thereby imperial measure together with the whole houses and other buildings on the said lands and others before disposed so far as belonging to me the salmon and other fishings so far as I have right thereto and the whole parts privileges and pertinents teinds parsonage and vicarage of the said lands and others before disposed and my whole right title and interest therein including (without prejudice to the said generality) my whole rights under the disposition first herein-after referred to But excepting from the lands and others before disposed that portion of land now occupied as a reservoir for water supply to Lochgoilhead Water Supply District extending to ninety-six thousandth parts of an acre (0 acres .096 decimals) or thereby imperial measure marked D on said plan as the same is described in the disposition by Niall Diarmid Campbell residing at Kilkatrine Inveraray as curator bonis therein mentioned in favour of the county council of the county of Argyll dated 12th October 1895 and recorded in the division of the General Register of Sasines applicable to the county of Argyll With free

A.D. 1912.

ish and entry to said land Together with the right of impounding the burns and springs flowing into said reservoir and storing the water thereof in the said reservoir for the use of the inhabitants of the said Lochgoilhead Water Supply District and any future extension thereof and likewise the wayleaves as delineated and tinted blue on the plan annexed to said disposition extending to four hundred and seventy lineal yards or thereby imperial standard measure for the pipes already laid or that may be required for the purpose of conducting water to and from the said reservoir and distributing the same to and among the parties in the said special water supply district who are now or may become hereafter entitled thereto All as the said lands and others before disposed are delineated by being coloured blue red green and yellow on the said plan signed by me as relative hereto and which lands and others before disposed are part and portion of all and whole the five merk lands of Auchterviche and others particularly described in the disposition granted by the said Niall Diarmid Campbell as curator bonis and with consent therein mentioned in my favour dated the third and recorded in the said division of the General Register of Sasines applicable to the county of Argyll the thirteenth both days of November nineteen hundred and five but the said lands and others herein-before disposed are so disposed always under the exceptions reservations burdens conditions obligations restrictions declarations and others specified or referred to in the said last-mentioned disposition dated and recorded as aforesaid and in the title deeds of the said lands and others and subject to any existing servitudes Declaring further as it is hereby expressly provided and declared (First) That the said lands and others herein-before disposed shall subject to such reservations rules and regulations as the Corporation of the city of Glasgow may from time to time resolve upon or prescribe be held and maintained by my said disponees in perpetuity as a place of resort for the community and inhabitants of the said city (Second) That no house or other building erected or to be erected on any part of said lands and others before disposed shall be used or occupied as a public-house or as a club where intoxicating liquors are sold or otherwise for the sale of intoxicating liquors and (Third) That the whole revenue to be derived by my said disponees from the said lands and others before disposed shall be held and applied by them for the maintenance and development of the said estate and particularly (but without prejudice to the said generality) for the purpose of making it more accessible to the community and inhabitants of the said city whether by piers ferries or otherwise with entry as at the term of Martinmas nineteen hundred and five notwithstanding the date hereof and I assign the writs an inventory whereof is annexed to the said disposition in my favour but in respect said writs refer to other subjects than those

A.D. 1912. before disposed they are not herewith delivered but I oblige myself to make such of them as are in my possession furthcoming to my said disponees upon all necessary occasions on the usual receipt and obligation for redelivery thereof and to take the party to whom I may ultimately deliver the same bound in like manner and I assign to my said disponees all right competent to me to demand exhibition of any other writs not belonging to me but forming part of the title of the said lands and others herein-before disposed and specified in the said inventory and I assign the rents and I bind myself to free and relieve my said disponees and their foresaids of all feu duties and public burdens and I grant warrandice from my own facts and deeds only but excepting always from said warrandice the conveyance of the salmon fishings the leases and missives of lease granted by me and my predecessors and the other rights of possession of tenants and others without prejudice to the right of my said disponees to quarrel or impugn the same on any ground in law not inferring warrandice against me and my heirs and successors and I consent to registration hereof for preservation.

In witness whereof these presents written on this and the five preceding pages of stamped paper by George Cundel Kirk Paterson clerk to Donaldson and Alexander writers in Glasgow are (under the declaration that the word "south-westward" is interlined between the thirty-ninth and fortieth lines of page first hereof so as to be read between the words "south-eastward" and "and" both occurring on the last-mentioned line and that the words "and Kilmorich" are interlined between the thirtieth and thirty-first lines of page fourth hereof so as to be read between the words "Lochgoilhead" and "and" both occurring on said last-mentioned line before subscription) subscribed by me at London on the twenty-sixth day of June in the year nineteen hundred and six before these witnesses Isabella McGregor domestic servant in my employment and Henry Finch Reid my private secretary.

I. MCGREGOR witness.

A. C. CORBETT.

HENRY F. REID witness.

THE SECOND SCHEDULE.

A.D. 1912.

LIST OF SECTIONS OF LOCAL ACTS REPEALED BY THE SECTION
OF THIS ORDER OF WHICH THE MARGINAL NOTE IS
“REPEAL OF PROVISIONS OF EXISTING ACTS.”

Title of Act.	Section.	Extent of Repeal.
Glasgow Improvements Act 1866	32	The words “upon or in respect of “ any heritages of less rental or “ annual value than four pounds “ nor ”
Glasgow Police Act 1866 - -	39	The words “at their last fortnightly “ meeting in August or at any “ adjournment thereof.”
Glasgow Municipal Buildings Act 1878.	29	The words “upon or in respect of “ any heritages of less rental or “ annual value than four pounds “ nor ”
Glasgow Juvenile Delinquency &c. Act 1878.	40	The words “upon or in respect of “ any lands or heritages of less “ rental or annual value than four “ pounds nor ”
Glasgow Corporation and Police Act 1882.	29	The words “upon or in respect of “ any lands and heritages of a “ rental or annual value of four “ pounds or under nor ”
Glasgow Police (Sewage &c.) Act 1891.	15	The words “at their last fortnightly “ meeting in the month of August “ or at any adjournment thereof.”
Glasgow Corporation (Improve- ments and General Powers) Act 1897.	18	The words “upon and from the “ occupier of any lands or heritages “ of less rental or annual value “ than four pounds nor ”
Glasgow Corporation (Tramways Libraries &c.) Act 1899.	39	The words “upon and from the “ occupier of any lands or heritages “ of less rental or annual value “ than four pounds nor ”

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